

Mrutunjaya Swain & Others vs State Of Odisha & Another Opp. ... on 30 January, 2025

IN THE HIGH COURT OF ORISSA AT CUTTACK

CRLMC No.4108 of 2024

Mrutunjaya Swain & others		Petitioners
		Mr. Rabindra
		Nath Prusty,
		Advocate

-versus-

State of Odisha & another		Opp. Parties
		Mrs. Sarita
		Mahrana, ASC
		and Mr.
		Aloknath Hota,
		Advocate

CORAM:

JUSTICE SIBO SANKAR MISHRA

Order
No.
03.

ORDER
30.01.2025

1.

Heard.

2. At the instance of the opposite party No.2, the F.I.R. in connection with Mancheswar P.S. Case No.34 of 2021 corresponding to C.T. Case No.681 of 2021 came to be registered against the petitioners for the alleged commission of offences punishable under Sections 498-A/294/506/34 of the IPC r/w Section 4 of the D.P. Act, pending in the Court of learned J.M.F.C. (LR), Bhubaneswar.

3. The allegation against the petitioners is that, the opposite party No.2 reported at Mancheswar P.S. alleging that, she had married to the petitioner No.1. After few days of their marriage, her husband and in-laws members started torturing her many times demanding more dowry. They have also threatened to kill her, if she will not fulfill the dowry demand. Hence, the F.I.R.

4. After the investigation, the charge sheet in the present case has already been filed on 28.08.2023 for the alleged commission of the offences punishable under Sections 498-A/294/506/34 of the IPC r/w Section 4 of the D.P. Act.
5. The learned trial Court, vide order dated 31.08.2023 has also taken cognizance of the aforementioned offences against the petitioners.
6. When the matter stood thus, the parties have settled their dispute. Pursuant to the settlement terms, the petitioner No.1 and the opposite party No.2 had applied for dissolution of their marriage by mutual consent under Section 13-B of the Hindu Marriage Act.
7. The learned Judge, Family Court, Bhubaneswar, while allowing the C.P. No.692 of 2021 vide judgment dated 23.02.2022 dissolved the marriage between the petitioner No.1 and the opposite party No.2 by mutual consent.
8. The petitioners have now moved the present application seeking quashing of the criminal prosecution initiated against them by the opposite party No.2 on the basis of the settlement terms.
9. The petitioner No.1, who is the husband of the opposite party No.2 and the opposite party No.2 are present in the Court today. The petitioner No.1 is physically present, whereas the opposite party No.2 has appeared before this Court through Video Conferencing mode.
10. So far as the petitioners Nos.2 to 5 are concerned, although they are not present before this Court today, however, learned counsel for the petitioners has moved an application seeking exemption of their personal appearance. All of them are the in-laws of the opposite party No.2. So far as the petitioners Nos.2 to 5 are concerned, for the reasons stated in the application for exemption of personal appearance, their personal appearance is exempted.
11. The petitioners and the opposite party No.2 are being represented by their respective counsel. They have also filed the photocopies of their self-attested Aadhaar Cards to establish their identity, which are taken on record.
12. The opposite party No.2 has also filed an affidavit dated 29.01.2025 before this Court, inter alia, stating as under:

"2. That, O.P. no.2 was married to the Petitioner No.1 and petitioner nos.2 to 5 are her in-laws. OP no.2 lodged an FIR in Mancheswar Police Station that was registered as Mancheswar PS Case No.34 of 2021 for offences committed U/s. 498A, 294, 506 and 34 of the Indian Penal Code, 1860 read with Section 4 of Dowry Prohibition Act, 1961. Mancheswar PS Case No.34 of 2021 was forwarded as CT Case No.681 of 2021 that is pending before the Hon'ble JMFC (LR), Bhubaneswar in the district of Khurda.

3. That, the police conducted its investigation and submitted Charge sheet vide CS No.533 dated 28.08.2023 U/s 498A, 294, 506 and 34 of the Indian Penal Code, 1860 read with Section 4 of Dowry Prohibition Act, 1961 against the petitioners.

4. That, it is humbly submitted that the OP no.2 and Petitioner no.1 approached the learned Judge, Family Court, Bhubaneswar in Civil Proceeding No.692 of 2021 praying for dissolution of their marriage by a decree of divorce by mutual consent U/s 13-B of the Hindu Marriage Act, 1955 which was allowed vide Judgment dated 23.02.2022.

5. That, it is also humbly submitted that the marriage between the Petitioner no.1 and Opp. Party no.2 has been dissolved by a decree of divorce by mutual consent of learned Judge, Family Court, Bhubaneswar in Civil Proceeding No.692 of 2021. As a result, there is no relationship between the Petitioner no.1 and Opp. Party no.2 as husband and wife respectively.

6. That, the petitioners have filed the present case before this Hon'ble Court praying for quashing the order of cognizance and the criminal proceeding pending against them in connection with CT case No.681 of 2021 corresponding to Mancheswar PS Case No.32 of 2021 pending before the Court of learned JMFC (LR), Bhubaneswar.

7. That, in such circumstances, Opp. Party no.2 humbly submits that she has no objections to the prayer of the petitioners in this present case for a direction of this Hon'ble Court for quashing of the order of cognizance and the criminal proceeding pending against the petitioners in connection with CT Case No.681 of 2021 corresponding to Mancheswar PS Case No.32 of 2021 pending before the Court of learned JMFC (LR), Bhubaneswar. Opp. Party No.2 also respectfully submits she does not intend to challenge the order of this Hon'ble Court for quashing of the criminal proceeding against the petitioners before a Higher Forum."

13. The opposite party No.2, who is present in the Court today through the V.C. mode, on the query from the Court, has stated that, she had given her consent for dissolution of her marriage with the petitioner No.1 and she has also received the alimony. Hence, she does not have any grievance against the petitioners.

14. Mrs. Sarita Maharana, learned Additional Standing Counsel appearing for the opposite party No.1-State submits that, the dispute is essentially arises out of a matrimonial discord leading to registration of the F.I.R. and the parties have settled their dispute. The opposite party No.2, the informant is present in the Court, has reiterated her stand that, she has settled her dispute with the petitioner No.1 and she has filed the affidavit before this Court that effect. Therefore, there is no legal impediment in quashing the F.I.R.

15. Regard being had to the submissions made above, and the fact that the parties have settled their dispute, I am inclined to allow the present petition. In the fact scenario of the present case,

subjecting the petitioners to the rigors of trial at this stage would be a futile exercise. The present case is squarely covered by the judgments of the Hon'ble Supreme Court in the cases of Gian Singh v. State of Punjab and another, reported in 2012 (10) SCC 303; B.S. Joshi & others v. State of Haryana & another, reported in (2003) 4 SCC 675 and Madhavrao Ji Wajirao Scindia & another v. Sambhajirao Chandojirao Angre and others, reported in AIR 1988 SC 709, therefore, the petition deserves merit.

16. Taking into consideration the aforementioned judgments, the facts of the case and submissions made at the Bar, the F.I.R. in connection with Mancheswar P.S. Case No.34 of 2021 corresponding to C.T. Case No.681 of 2021 pending in the Court of learned J.M.F.C. (LR), Bhubaneswar and the consequential proceedings arising therefrom qua the petitioners are quashed.

17. The CRLMC is accordingly disposed of.

(S.S. Mishra) Judge Subbasis Designation: Personal Assistant Location: High Court of Orissa, Cuttack. Date: 30-Jan-2025 19:56:52